

Smt. Sushila Giri v. Uttar Pradesh Power Corporation

High Court of Judicature at Allahabad · Division Bench · 13 February 2023 · Writ - C No. 35928 of 2022 · **On consent, connection to be granted within ten days of formalities.**

HEADNOTE

A tenant sought a new electricity connection at 197, Nai Basti, Kydganj, Prayagraj. The licensee invoked clause 4.3(f)(iii) of the U.P. Electricity Supply Code, 2005 because the landlord owed Rs. 94,431 on the premises. After the corporation stated it had no difficulty giving a prepaid meter, the High Court disposed of the writ on consent, directing the second respondent to process the petitioner's connection form and, once formalities were completed to its satisfaction, to grant supply within ten days. The Court did not construe the arrears bar.

FACTUAL SUMMARY

Smt. Sushila Giri, a tenant at 197, Nai Basti, Kydganj, Prayagraj, sought a writ for an electricity connection. The U.P. Power Corporation refused, citing landlord arrears of Rs. 94,431 on the premises and clause 4.3(f)(iii) of the 2005 Supply Code. She offered a prepaid meter and alleged other occupants were taking supply by theft. After listings for instructions, the corporation said it had no difficulty providing a prepaid meter.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(iii)

new connection — tenant — premises in arrears

HOLDING

On consent of the parties, the writ was disposed of directing the second respondent to process the tenant-petitioner's application for electricity connection. Upon completion of formalities to the licensee's satisfaction, supply was to be granted within ten days. The licensee had invoked clause 4.3(f)(iii) of the U.P. Electricity Supply Code, 2005 on landlord arrears of Rs. 94,431, but stated it would have no difficulty providing a prepaid meter. The Court did not decide whether that clause independently barred the connection. ¶ 13.02.2023

PRINCIPLE TAGS

tenant-connection-landlord-arrears Without construing clause 4.3(f)(iii), the Court on consent directed processing of a tenant's connection and grant of supply within ten days of completed formalities after the licensee said it had no difficulty providing a prepaid meter despite landlord arrears of Rs. 94,431. ¶ 13.02.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.3(F)(III) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 BARS A NEW CONNECTION TO A TENANT WHERE THE LANDLORD OWES ARREARS ON THE PREMISES

The licensee invoked the clause; the writ was disposed of on consent for processing a connection without construing the bar. ¶ 13.02.2023